

SENATE BILL NO. 236

INTRODUCED BY B. USHER, S. ESSMANN, G. LAMMERS, E. KERR-CARPENTER

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING COUNTY DETENTION OFFICER SALARIES;
PROVIDING THAT DETENTION OFFICERS RECEIVE LONGEVITY PAYMENTS SIMILAR TO DEPUTY
SHERIFFS AND UNDERSHERIFFS; SUPERSEDING THE UNFUNDED MANDATE LAWS; AND AMENDING
SECTIONS 7-4-2507 AND 7-4-2510, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 7-4-2507, MCA, is amended to read:

**"7-4-2507. Deputy sheriff, and undersheriff, and detention officer EMPLOYED UNDER SHERIFF'S
OFFICE -- provisions -- construction.** If there is a conflict between 7-4-2508 through 7-4-2510 and any other
law, 7-4-2508 through 7-4-2510 govern with respect to undersheriffs, and deputy sheriffs, and detention officers
EMPLOYED BY A COUNTY UNDER A SHERIFF'S OFFICE."

Section 2. Section 7-4-2510, MCA, is amended to read:

"7-4-2510. Sheriff's office -- longevity payments. ~~Beginning~~ UNLESS ALREADY PROVIDED FOR IN A
NEGOTIATED AGREEMENT, BEGINNING on the date of the deputy sheriff's, or undersheriff's, or detention officer's
first anniversary of employment with the office and adjusted annually, a deputy sheriff, or undersheriff, or
detention officer is entitled to receive a longevity payment amounting to 1% of the minimum base annual salary
for each year of service with the office. This payment must be made in equal monthly installments. The
payment, nonpayment, increase, lack of increase, or decrease of the discretionary salary under 7-4-2503(2)(c)
has no impact on the longevity payment."

NEW SECTION. **Section 3. Unfunded mandate laws superseded.** The provisions of [this act]
expressly supersede and modify the requirements of 1-2-112 through 1-2-116.

- END -